

JUNE 1, 2026
Dept. 9
Probate Tentative Rulings

6.	26PR0118	IN THE MATTER OF ANNE A. MALLOY 2009 TRUST
OSC REMOVAL OF TRUSTEE AMBER PETERS		

Petitioners are beneficiaries of the Anee Malloy 2009 Trust ("Trust") and received a Notice of Irrevocable Trust, dated October 16, 2009 (Petition, Exhibit A. Following a series of trustee resignation, Amber Peters was appointed on May 9, 2024.

Petitioners request that the trustee be removed pursuant to Probate Code § 15642 for failing to perform legally required accountings under Probate Code § 16062-16063 and for failure to provide information to Trust beneficiaries as required by Probate Code § 16060- 16061.5. Petitioners state the trustee has wholly failed to administer the trust, communicate with Petitioners or fulfill any legal duties.

An ex parte application to suspend the trustee and make an interim appointment was filed on April 27, 2026. The court granted the ex parte request suspending Ms. Peters and appointing Ashley Katzakian and Bozant Katzakian as co-trustees on April 28, 2026.

Notice of hearing and proof of service was filed on April 30, 2026, to all beneficiaries and Ms. Peters by mail. Ms. Peters was personally served on April 30, 2026. No opposition has been filed.

The court intends to grant the petition as requested.

TENTATIVE RULING #6:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.